

FORM No. HCJD/C-121.
ORDER SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Case No. Crl. Misc. No. 764-B/2025

Muhammad Sarfraz **Versus** The State and another

S.No.of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
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04)	27.02.2025	Ch. Amanat Ali Dogar, Advocate with the petitioner. Ch. Muhammad Sadiq, Additional Prosecutor General with Sohail Chaudhary RPO, Rao Naeem Shahid, SSP/RIB, Shaban Mehmood SP Legal, Iftikhar DSP Legal, Karam Hussain SI and Imran ASI. Ch. Muhammad Imran Shahzad, Advocate for the complainant.
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Through this petition filed under Section 498 of the Code of Criminal Procedure, the petitioner seeks the concession of pre-arrest bail in connection with case FIR No. 1795 of 2023, dated 09.10.2023. The said case has been registered under Section 392 of the Pakistan Penal Code at Police Station Basti Malook, District Multan.

2. Learned counsel for the petitioner vehemently contends that, despite the criminal case having been cancelled by the order of the Magistrate pursuant to a case cancellation report prepared by the investigating officer, the police remain resolute in their attempt to arrest the petitioner.

3. The pertinent facts reveal that the case was initially registered on 9.10.2023. Subsequently, the case cancellation report (hereinafter ‘*the cancellation report*’) was prepared on 10.10.2023, and, in due course, was forwarded to the concerned Magistrate on 21.12.2023. The cancellation report was duly endorsed by the Magistrate vide order dated 10.02.2024 in the spirit of Rule 24.7 of The Punjab Police Rules, 1934, which remained unchallenged thereafter.

4. Rather than challenging the order of the Magistrate, an astonishing course was taken and an application was filed before the District Standing Board under Article 18-A of the Police Order, 2002, seeking the first change of investigation. However, the Board declined the request, deeming it inappropriate to transfer the investigation. Subsequently, an application was submitted to the Regional Standing Board seeking a transfer of investigation. As a result, on 06.03.2024, the case was handed over to the Regional Investigation Branch for further investigation, blatantly disregarding the fact that the cancellation report had already been endorsed by the Magistrate and that no criminal case was legally in the field at the time. The record further reveals that after the Regional Standing Board transferred the investigation to the Regional Investigation Branch, it was subsequently reverted to the local police station. During this process, one of the accused, Muhammad Aslam, was arrested on 21.12.2024, and following his physical remand, the recovery of thirty thousand rupees along with a top link of a tractor trolley was also affected.

5. The first question of law before this Court is whether, after a cancellation report is prepared by the investigating officer and approved by the Magistrate, any further investigation can lawfully be carried out.

6. The first legal question that falls for determination before this Court is whether, upon the submission of a cancellation report by the investigating officer and its acceptance by the Magistrate, the chapter stands finally closed, or whether the law countenances the initiation of further investigation in the same matter. The legal proposition is now deeply entrenched that once a cancellation report has been prepared and approved by the concerned Magistrate, further investigation cannot be carried out by the investigating agency, as practically no criminal case exists. If no criminal case remains legally in the field, then any purported transfer of investigation is nothing

more than a legal mirage. Once a cancellation report has been prepared and duly endorsed by the Magistrate, the case effectively reaches its logical conclusion, leaving no room for further investigation. It is now a firmly entrenched legal proposition that once a cancellation report has been prepared by the investigating agency and duly endorsed by the competent Magistrate, the matter stands extinguished in the eyes of the law. With the legal substratum of the criminal case no longer in existence, the prospect of further investigation becomes unwarranted. The acceptance of the cancellation report marks the terminus of the investigative process, bringing the case to its logical conclusion and leaving no lawful room for the investigating agency to further investigate the case.

7. The next legal proposition before this Court is whether the transfer of an investigation of a criminal case from one investigating officer to another is absolute and final or merely a provisional measure, requiring the case to revert to the original investigating officer after a certain stage of investigation or investigating the specific accused. The legal response is clear and unequivocal that the transfer of investigation is not a mere temporary procedural formality but a definitive and permanent measure, undertaken to ensure the comprehensive conduct of the entire investigation. It is not intended as a provisional deviation or a partial reassignment for a limited purpose, rather, it signifies a complete shift in investigative authority, entrusting the new officer with the exclusive responsibility of carrying the investigation to its logical conclusion. Any notion that the investigation must revert to the original or previous officer after a certain stage is misconceived and contrary to the very essence of such a transfer. Once an investigation is transferred, it shall be conducted exclusively by the entrusted officer and cannot revert to the previous investigating officer/officers.

8. The Regional Police Officer, appearing before the Court, candidly acknowledges the aforementioned legal position and

unequivocally undertakes to abide by the due process of law in the future. Above discussed illegalities committed by the investigating agency not only undermined the sanctity of due process but also led to a complete miscarriage of justice, culminating in the unlawful detention of a citizen. Another matter of concern is the apparent lapse on the part of the Regional Standing Board, comprising senior officers, who failed to diligently examine the record before ordering the transfer of investigation. This Court is compelled to issue following firm directions to ensure that such egregious illegalities are not repeated in the future by the investigating agency, for justice must not only be done but must manifestly prevail in every proceeding:-

- I. Once a cancellation report is prepared and approved by the Magistrate, no further investigation shall be conducted by the investigating agency unless the Magistrate's order is set aside.
- II. As soon as the cancellation report prepared by the investigating agency is concurred with by the concerned Magistrate, this fact must be promptly entered into the relevant police register. The investigating officer should likewise record this development in the case file, duly noting it in the police diary.
- III. Before ordering the transfer of investigation, the relevant Board, as envisioned under Article 18-A of the Police Order, 2002, must meticulously examine the entire record to ascertain whether the criminal case remains legally in existence and has not been cancelled or quashed.
- IV. When the investigation of a criminal case is transferred, it shall be conducted exclusively by the entrusted officer and shall not revert to the

previous investigating officer under any circumstances.

V. The Magistrates handling remand or pretrial matters must exercise strict vigilance and closely examine the record, lest their orders inadvertently legitimize an illegality.

9. Since no criminal case exists against the petitioner, the present petition for pre-arrest bail is not maintainable. Learned counsel for the petitioner, upon realization of this fact, does not press this petition and seeks permission to withdraw the same.

10. **Disposed of** accordingly. A copy of this order shall be transmitted to the Central Police Office, Punjab, Lahore for future guidance.

(Ali Zia Bajwa)
Judge

Approved for Reporting

Judge

The order was pronounced on 27.02.2025 and
after completion, signed on 21.03.2025.

Athar